

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Wyoming

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not include the rationale for the policy to allow providers to charge families additional amounts above the required co-payment, including a demonstration of how the policy promotes affordability and access for families, as required by 45 CFR 98.45(b)(5). (Plan Question 3.1.2ei)

Overall Target Completion Date: 01/15/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review the submitted policy rationale.	12/15/2024
2	Request examples from Region 8 states.	12/31/2024
3	Revise the policy rationale & submit for feedback.	01/15/2025

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Research methodologies for prospective and alternative payments, including looking at states which have implemented (ie. Utah, North Dakota, Texas)	07/01/2025

2	Evaluate Budget impact for prospective and alternative payments.	07/01/2025
3	Identify Budget gaps and possible options for additional revenue.	10/01/2025
4	Decision for methodology.	12/31/2025

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency's market rate survey was not developed and conducted within two years of the date of submission of the CCDF Plan, as required by 98.45(c)(1). (Plan Question 4.2.1ai)
- The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Finalize MRS & publish.	12/31/2024
2	Evaluate impact of the new rates and identify Budget gaps and options for additional revenue.	01/31/2025
3	Decision regarding the possibility of implementation of new rates.	03/31/2025

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Request TA & Research how other states operationalize grants or contracts for direct services.	02/28/2025
2	Evaluate Budget impact for grants & contracts for direct services.	07/01/2025
3	Decision regarding approach to grants or contracts for direct services: RFP? Pass Through?	10/01/2025

COMPREHENSIVE BACKGROUND CHECK:5 YEAR RENEWAL

Reason(s) for non-compliance:

- The Lead Agency does not conduct all interstate background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17)

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Continue research of interstate background check policy and procedures.	07/01/2025
2	Consider the State approach to interstate background checks.	10/01/2025

HEALTH AND SAFETY:HANDLING AND STORAGE OF HAZARDOUS MATERIALS AND DISPOSAL OF BIOCONTAMINANTS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the appropriate disposal of biocontaminants for licensed centers and licensed family child care providers, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8bi and 5.3.8bii)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for disposal of biocontaminants, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 05/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revise Child Care Licensing Rules to include handling and storage of hazardous materials and biocontaminants disposal.	03/31/2025
2	Align Child Care Licensing Rules with Child Care Licensing policy.	03/31/2025
3	Revise Child Care Licensing inspection check-lists to include handling and storage of hazardous materials and biocontaminants disposal.	03/31/2025
4	Update State Plan to include handling and storage of hazardous materials and biocontaminants disposal.	05/30/2025

HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers for compliance with ongoing training requirements, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date

1	Revise Unannounced Inspection form to include ongoing training requirements.	10/01/2024
2	Implementation of Unannounced Inspection form to include ongoing training requirements.	10/01/2024
3	Update State Plan to reflect implementation of new Unannounced Inspection form.	01/31/2025

HEALTH AND SAFETY:PEDIATRIC FIRST AID AND PEDIATRIC CPR

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for pediatric first aid for all staff for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(x). (Plan Questions 5.3.10ai, 5.3.10aii, 5.3.10aiv, 5.3.10av, 5.3.10avi, and 5.3.10avii)
- The Lead Agency does not require pre-service or orientation training on pediatric first aid for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers, or an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with a standard for pediatric first aid and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 05/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revise Child Care Licensing Rules to include pediatric first aid.	03/31/2025
2	Revise Child Care Purchase of Services Rules to include pediatric first aid.	02/28/2025
3	Align Child Care Licensing Rules with Child Care Licensing policy and forms.	03/31/2025

4	Align Child Care Purchase of Service Rules with Child Care Subsidy Program policy and forms.	02/28/2025
5	Update State Plan to include pediatric first aid.	05/30/2025

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all licensed centers and licensed family child care providers, as required by 98.33(a)(4)(ii). (Plan Question 5.5.4aii)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revise Unannounced Inspection form.	10/01/2024
2	Implementation of Unannounced Inspection form.	10/01/2024
3	Update State Plan to reflect implementation of new Unannounced Inspection form.	01/31/2025

HEALTH AND SAFETY:RATIOS AND GROUP SIZE FOR CCDF PROVIDERS

Reason(s) for non-compliance:

- The Lead Agency has not established a group size for mixed age groups in license-exempt centers, as required by 98.41(d)(1). (Plan Question 5.2.2bvi)
- The Lead Agency does not require an annual inspection for license-exempt centers for compliance with a group size standard, as required by 98.42(b)(2)(ii). (Plan Question 5.5.2ai)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revise Child Care Purchase of Services Rules to include group size for mixed age groups in license-exempt child care centers.	02/28/2025
2	Align Child Care Purchase of Rules with Child Care Subsidy program policy and forms.	02/28/2025
3	Train license-exempt child care center directors.	03/31/2025

COMPREHENSIVE BACKGROUND CHECK:INTER-STATE

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct interstate criminal history background checks for all staff members (or prospective staff members) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.6a and 5.7.6b)
- The Lead Agency does not require and conduct interstate criminal history background checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.6c)

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Continue research of interstate background check policy and procedures.	07/01/2025
2	Consider the State approach to interstate background checks.	10/01/2025

CONSUMER EDUCATION:WEBSITE AND RESOURCES FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not include aggregate data for the total number of children in care by provider category and licensing status when posting data on serious injuries, fatalities, and substantiated cases of child abuse in care, as required by 98.33(a)(5)(iv). (Plan Question 9.2.5aiv)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Update Consumer Education website to include aggregate data for the total number of children in care by provider category and licensing status.	10/01/2024
2	Update State Plan to reflect update to the website.	01/31/2025

LEAD AGENCY RESPONSIBILITIES:PROGRAM ADMINISTRATION, PLAN DEVELOPMENT, AND PROGRAM/FUNDING COORDINATION

Reason(s) for non-compliance:

- The Lead Agency's Statewide Disaster Plan does not include all required elements, as required by 98.16(dd)(2)(iii)(A) and 98.16(dd)(2)(iii)(B). (Plan Questions 8.5.1bv and 8.5.1bvii)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Update the Statewide Disaster Plan.	01/31/2025
2	Post updated Statewide Disaster Plan to Agency website.	02/28/2025
3	Update State Plan to reflect updated Statewide Disaster Plan.	03/31/2025

QUALITY IMPROVEMENT AND SUPPORT FOR CHILD CARE WORKFORCE:PROFESSIONAL DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for licensed child care centers and licensed family child care homes, as required by 98.44(b)(2). (Plan Questions 6.3.1a and 6.3.1c)

Overall Target Completion Date: 05/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Revise Child Care Licensing Rules to include minimum requirements for annual professional development.	03/31/2025
2	Align Child Care Licensing Rules with Child Care Licensing policy and forms.	03/31/2025
3	Update State Plan to include minimum requirements for annual professional development.	05/30/2025